

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1625

By: George

AS INTRODUCED

An Act relating to crimes and punishments; amending
21 O.S. 2021, Section 650, which relates to
aggravated assault and battery on a police officer;
modifying scope of crime to include strangulation;
defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 650, is
amended to read as follows:

Section 650. A. Every person who, without justifiable or
excusable cause, knowingly commits any aggravated assault and
battery upon the person of a police officer, sheriff, deputy sheriff
or highway patrolman, corrections personnel as defined in Section
649 of this title, or any state peace officer employed by any state
or federal governmental agency to enforce state laws, while the
officer is in the performance of his or her duties shall upon
conviction thereof be guilty of a felony, which shall be punishable
by imprisonment in the custody of the Department of Corrections for

1 not more than life or by a fine not exceeding One Thousand Dollars
2 (\$1,000.00), or by both such fine and imprisonment.

3 B. Every person who, without justifiable or excusable cause,
4 commits any aggravated assault and battery upon a person that the
5 violator knows or should reasonably know is a police officer,
6 sheriff, deputy sheriff or highway patrolman, corrections personnel
7 as defined in Section 649 of this title, or any state peace officer
8 employed by any state or federal governmental agency to enforce
9 state laws, that results in maiming as defined in Section 751 of
10 this title, while the officer is in the performance of his or her
11 duties shall upon conviction be guilty of a felony punishable by
12 imprisonment in the custody of the Department of Corrections of not
13 less than five (5) years nor more than life or by a fine not
14 exceeding Five Thousand Dollars (\$5,000.00), or by both such fine
15 and imprisonment.

16 C. For purposes of this section, aggravated assault and battery
17 upon law officers, includes the physical contact with and in attempt
18 to gain control of the firearm of any police officer, sheriff,
19 deputy sheriff, highway patrolman, corrections personnel as defined
20 in Section 649 of this title, or any peace officer employed by any
21 state or federal governmental agency to enforce state laws.

22 D. For purposes of this section, aggravated assault and battery
23 upon law officers includes the strangulation of any police officer,
24 sheriff, deputy sheriff, highway patrolman, corrections personnel as

1 defined in Section 649 of this title, or any peace officer employed
2 by any state or federal governmental agency to enforce state laws.
3 As used in this subsection, "strangulation" means any form of
4 asphyxia including, but not limited to, asphyxia characterized by
5 closure of the blood vessels or air passages of the neck as a result
6 of external pressure on the neck or the closure of the nostrils or
7 mouth as a result of external pressure on the head.

8 E. This section shall not supersede any other act or acts, but
9 shall be cumulative thereto.

10 SECTION 2. This act shall become effective November 1, 2025.

12 60-1-10363 GRS 12/31/24
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